

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2026CUBC062347: DAVID BURG vs FCA US LLC, A DELAWARE LIMITED
LIABILITY COMPANY
08/26/2026 in Department 44
MANDATORY APPEARANCE CMC/Order to Show Cause Re Sanctions/Dismissal for
Failure to File Proof of Service/Default**

This Case Management Order (“CMO”) shall govern this litigation. If the parties have questions or concerns with any aspect of the CMO, they are directed to voice those concerns at the case management conference.

REMOTE APPEARANCES

The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

DEPARTMENT RULES

Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>. The Court updates these rules from time to time. Counsel and parties are required to follow the operative rules.

CASE STATUS

The case is at issue, however, jury fees have not been posted and Plaintiff did not timely file a case management statement as required by CRC 3.725. The Court will set trial to the extent Plaintiff agrees to rely on the information provided in Plaintiff’s case management statement. If Defendant/Plaintiff wishes to file a statement, the Court will continue the case management conference together with an OSC why counsel should not be sanctioned under CRC 177.50 in the amount of \$200 for failure to timely file a case management statement as required by CRC 3.725. **Plaintiff is ordered to advise the Court at the CMC whether a continuance is requested.**

LITIGATION DATES:

Event	Date
Trial	February 21, 2028, at 1:30 p.m.
Pretrial Conference	February 11, 2028, at 8:30 a.m.
All other Litigation Dates & Deadlines	Per Code of Civil Procedure

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COURT TRIAL

The Court sets this matter for a 5-day **court trial** on the above trial date in Department 44 of the Ventura County Superior Court. The trial date is a **date certain** for trial under California Rules of Court, Rule 3.1332. The Court **will not** grant any continuances but for a request made pursuant to, and good cause showing under, Rule 3.1332. Trial counsel are ordered to attend trial in person.

PRETRIAL CONFERENCE

The Court also sets a Pretrial Conference on the above pretrial conference date in Department 44. The parties are ordered to **complete mediation at least 30 days prior to the pretrial conference**, and **file a joint pretrial conference report** in accordance with the Local Rules for Department 44, which rules are incorporated into and made part of this Case Management Order. **Trial counsel is ordered to appear at the Pretrial Conference**, and may attend the pretrial conference remotely so long as trial counsel provides timely registration of their intent to appear remotely in accordance with the Court's local rules.

IF JURY FEES HAVE NOT BEEN POSTED BY THE TIME OF THE CMC. Jury Fees are due by the time of the case management conference or jury is waived under Code of Civil Procedure, section 631. Notwithstanding this rule, should either party wish to preserve their respective client's rights to a jury trial, either counsel can do so by posting those fees as of the date of this CMO, and filing a declaration to the effect that 1) the jury fees have been posted in accordance with this order, 2) the party would like to convert their court trial to a jury trial. The declaration must be submitted with a proposed order that grants the parties a jury trial, which is set for the same day and time as the previously set court trial. Jury will be waived if the requesting party does not comply with this provision of the CMO.

The OSC will be discharged.

The parties are requested to waive notice. To the extent the parties submit on the tentative, they are requested to advise the court whether notice is waived.